

July 5, 2024

Sent Via Email:

Timothy Lueders-Dumont, Esq.
Legislative & Asst. Appellate Attorney
Vermont Department of State's Attorneys and Sheriffs

Re: Public Records Request Pursuant to 1 V.S.A. §§ 315, et. seq.

Mr. Lueders-Dumont:

On behalf of the ACLU Foundation of Vermont, in accordance with 1 V.S.A. §§ 315 *et seq.*, I am requesting copies of the following records,¹ either in electronic or paper format, from the Chittenden County State's Attorney's Office:

1. All correspondence, records, or communications received from or sent to any local, state, or federal law enforcement agency regarding [redacted name];
2. All documents, memoranda, training materials, guidance, or communications regarding 18 V.S.A. § 4240a
 - a. This request includes, but is not limited to, any records regarding any proposed or actual law enforcement action to which 18 V.S.A. § 4240a proved a barrier to investigation, arrest, seizure, prosecution, or conviction.

Authorization from [redacted name] to disclose these records is attached.

We have addressed this request to you in the belief that you are the custodian of such records. If you are not, please forward this request to the proper custodian of such documents and inform us of who the proper custodian is.

¹ For the purpose of this letter, "records" includes but is not limited to all records or communications preserved in electronic or written form, including but not limited to: text communications between phones or other electronic devices (including but not limited to communications sent via SMS or other text, Blackberry Messenger, iMessage, WhatsApp, Facebook, Signal, Gchat, Twitter direct message, or similar form of communication), including those sent through personal devices or accounts; e-mails (including those in personal accounts); images, video, and audio, including that recorded on cell phones; voicemail messages; social-media posts; minutes or notes of meetings and phone calls; faxes; documents; data; correspondence; letters; messages; files; forms; logs; investigations; reports; directives; instructions; or other communications.



PO Box 277
Montpelier, VT 05601
(802) 223-6304
aclvt.org

Because the Public Records Act governs “any written or recorded information, regardless of physical form or characteristics,” *id.* § 317(b), your search for responsive data should include electronic as well as tangible sources. For any record in an electronic format, the ACLU Foundation of Vermont requests the copies in their standard electronic format. *See id.* § 316(i) (“If an agency maintains public records in an electronic format, nonexempt public records shall be available for copying in either the standard electronic format or the standard paper format, as designated by the party requesting the records.”).

The ACLU Foundation of Vermont additionally requests that the copies for each request be provided without charge. The ACLU Foundation of Vermont is a not-for-profit charitable and educational organization dedicated to the protection of civil liberties and government accountability, and waiving fees is in the public interest. Should you decline to waive the charges and expenses, the ACLU Foundation of Vermont is prepared to pay reasonable costs for copies pursuant to the above-specified requests.

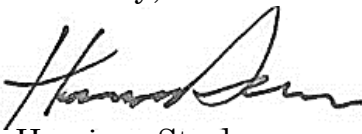
All charges should be itemized per task and per request to enable an evaluation of the charges and need to amend any particular request. Any records are welcome to be sent in electronic format to hstark@acluvt.org.

If you believe that the ACLU Foundation of Vermont is not entitled to some of these records, you are required to inform us of your decision within three business days, listing each record or portion of a record withheld, the specific exemption that you believe applies to each, along with a brief statement of the reasons and supporting facts for each denial. 1 V.S.A. § 318(b)(2). If responsive records do not exist, you must certify that in writing to us. *Id.* § 318(b)(4).

If an otherwise-public record has a portion that is exempt from disclosure, you should redact the exempt portion and release a copy of the rest of the record together with a notation identifying the specific exemption that you believe applies to the portion withheld. *Id.* § 318(e); *Herald Ass’n v. Dean*, 174 Vt. 350, 358-359 (2002). If all or some of our request is denied, please notify us of the title and name of the person responsible for the denial, and please inform us of the appeal procedures available to us, including the name of the person to whom appeal may be made.

If you have questions about this request, please feel free to contact me at hstark@acluvt.org. Thank you in advance for your assistance.

Sincerely,

A handwritten signature in black ink, appearing to read "Harrison Stark", written in a cursive style.

Harrison Stark
Senior Staff Attorney
ACLU of Vermont